

Hollowell Patent Group PLLC

www.hollowellpatent.com

March 4, 2025

Tiffany Munoz
Chief Financial Officer
Price-Henson

Dear Ms. Munoz:

This letter records the terms on which the firm will represent Price-Henson in the licensing diligence you have engaged us to perform, and it takes effect as our agreement when you sign the enclosed copy and return it to me. I have written it out in full rather than in summary, because the purpose of diligence is to know what you are agreeing to before you agree to it, and our own engagement should hold to that same standard. If anything set out below does not match what we discussed, tell me before you countersign and we will correct it.

Scope of the Diligence

You have asked us to review the patent and licensing position behind the transaction Price-Henson is evaluating, and to tell you plainly what that position supports and where it leaves you exposed. We will identify the patents and published applications that bear on the deal, read the material license agreements together with their grant, field-of-use, royalty, and termination terms, and test what those documents actually convey against the representations the counterparty has made, so that you enter the transaction knowing what you are acquiring the right to practice rather than what you have been told you are acquiring. Where the record is incomplete, or a question turns on facts we cannot verify from the documents in front of us, we will say so rather than close the gap with an assumption dressed up as a finding.

What this diligence is not deserves to be stated with equal care. It describes risk; it does not remove it. Our conclusions will rest on the documents you and the counterparty provide and on the searches we run, current as of the date we deliver our report, and they are not a warranty that no patent or agreement exists that those materials did not disclose. If the transaction changes shape after we begin, or you ask us to extend the review to rights outside the United States or to a formal opinion on a particular patent, we will scope and price that work separately before we take it on, so that nothing is added to this engagement without your agreement to it.

How We Will Work

We run a review of this kind in a set order, and we do not skip ahead in it. We fix the scope in writing first, so that both sides agree on exactly which products, patents, and agreements the diligence covers before any of them is examined; then we assemble the full document set and note in writing anything we are missing, so that gaps are raised at the start and not discovered at the end; and only then do we read and search, reading the portfolio and the agreements while running the prior-art and freedom-to-operate searches that test them. We chart what those searches return, and I review the charts myself before any conclusion is drawn from them.

You will hear from us on a regular cadence rather than only at the end. The agents on the matter will keep you current on progress and on what we still need from your side, and I will bring you anything that bears on a decision you have to make while there is still time to act on it. When we reach a conclusion that matters to the transaction, you will have it in writing, and we will talk it through before you rely on it.

The Team

Two of our patent agents will carry the technical work. David Chang will lead the reading of the patent portfolio and the claim analysis, and Richard Henderson will run the prior-art and freedom-to-operate searches and prepare the charts that support our findings. On this matter both report to me, and any question that turns on infringement, validity, or the legal effect of a license term comes to me before it reaches you. You will deal with a small and steady team, and the people who do the work are the people whose names are on it.

Our Fee

Our fee for the diligence is \$41,000, fixed at the outset rather than billed against hourly time, so that you can put a question to us without watching a clock and so that our attention stays on the work rather than on how long it takes. The fee covers the searches, the document review, the analysis, and one written diligence report, together with the calls and correspondence that go with them; it does not cover work we later agree to add, such as a formal opinion on a particular patent, support in negotiating the deal, or a review of foreign rights, each of which we would quote before beginning. We will bill the fee in installments as the work proceeds, and each invoice is due within thirty days of its date.

Term and Termination

The engagement begins on March 14, 2025 and runs approximately six months, which is the period on which we have planned the review, though we will tell you early if it turns out to need more time or less. Either of us may end it on written notice. If you end it, you owe the fee earned to that point and any costs we have incurred, and nothing beyond that; if we end it, which we would do only for a reason our professional obligations require, we will refund the part of the fee that covers work we have not performed and help you move the matter to other counsel without avoidable disruption.

Confidentiality

We will treat the documents you and the counterparty provide, and the fact and substance of this engagement, as confidential, and we will use what you give us only to perform the work you have retained us for. Our analysis and the communications around it are intended to be protected by the attorney-client privilege and the work-product doctrine. We ask that you keep them within the group at Price-Henson that needs them, because a privileged analysis circulated too widely can lose the protection that makes it safe for us to write candidly.

Limitation of Liability

We will perform this engagement with the care and skill our profession expects, and our conclusions will reflect our best professional judgment on the record before us. We cannot warrant a particular outcome, because diligence turns on documents that others drafted and on rights that others hold, and those are not matters within our control. Our liability to you arising out of this engagement is limited to the amount of the fee you actually pay us for it, except where the law does not permit that limit, and neither of us will be liable to the other for indirect or consequential loss.

Governing Law

This letter is the entire agreement between us on this engagement and replaces anything discussed or drafted before it, and it may be changed only in a writing that we both sign. It is governed by the law of the state in which our firm maintains its principal office, and any dispute we cannot settle between ourselves will be heard by the courts sitting in that state, whose jurisdiction we each accept.

Confirming Our Engagement

If this letter states our agreement, please sign and date the enclosed copy and return it to me, and we will open the matter and begin on the date set out above. If you

would rather work through any part of it first, tell me and I will find the time this week.

Very truly yours,

Mary Bradley

Managing Partner

Date: March 4, 2025

Tiffany Munoz

Chief Financial Officer, Price-Henson

Date: March 4, 2025